

[Government]

Q Write Down the basic concepts of Government and governance.

What do you mean by government and Governance?

-4/6

Governance:

- Governance determines who has the power, who makes decisions, how other players make their voice heard and how account is rendered.

- Most Governance literature definitions rest on

3 Dimensions

- Authority
 - Decision-making
 - Accountability
- Where a group is too large to efficiently make all the necessary decisions, it creates an entity to facilitate the process and delegate a large

portion of Decision-making responsibility to this entity.

Ex: ~~the~~ Board of Directors in public sector, Voluntary sector.

- Governance is neither simple or neat — by nature it may be tentative, unpredictable and fluid.

- It is complicated by the fact that it involves multiple actors, not a single helmsman.

- Governance process and practice vary significantly given the environment in which they are applied.

Government:

- Government is the organization or machinery or magistracy of the state which makes, implements, enforces and adjudicates the laws of the state.
- The state exercises its sovereign power through its government.
- Each ~~over~~ government has 3 organs:
 - (i) Legislature — performs law making function
 - (ii) Executive — " law application "
 - (iii) Judiciary — " adjudication "
- Government can be of any form
 - Monarchy
 - Aristocracy
 - Democracy

- dictatorship

- Intervals

- can be either parliamentary or presidential or both.

- can be unitary or Federal or mixture of both.

☞ Write down the Difference between government and Governance.

<u>Principle</u>	<u>Governance</u>	<u>Government</u>
• Definition	• Governance Determined who has power, who makes decisions, how other players make their voice heard and how account is rendered.	• Government is the organization or machinery or magistracy of the state which makes, implements, enforces and adjusts the laws of the state.
• Actions involved	• Government actions • civil-society actions • private actions	• Government actions.

Section

Impact

Terms Associated with

	Governance	Government
Section	Same as previous	
Impact	The Impact of Governance is broader than Government.	The Impact is limited to the Government sector.
Terms Associated with	• "Decentralization and relational management."	• "Command and control" or "control and domination".

Thus under the current trend, there is a need to move from the "traditional hierarchical exercise of power by the government" to the new notion of a "dispersed and relational power in governance". - from government to governance.

To govern now should mean to facilitate, or regulate, not to dominate or command.

Q STATE what you know about Bureaucracy?

• A bureaucracy is "a body of non-elective government officials" and/or "an administrative policy making group".

• Today bureaucracy is the administrative system governing any large institution.

• The term "bureaucracy" is French

in origin coined by the economist, "Jacques Claude Vincent de Gournay".
Maurice combined the words French word,

"bureau - desk or office" with the Greek word "kratos - rule or political power".

• Irish novelist Lady Morgan referred to Bureaucratic as office tyranny.

- In the 1990s it was seen as a distinct form of management.

- By 1957 sociologist Robert Merton noted that the term "bureaucrat" had become an epithet.

Q Write briefly about the elements of state.

- A state stands identified with its four absolutely essential elements.

1. population:

- population is a human political institution.

- Without a population there can be no state.

- It can be more or less but it has to be there.

- The people living in the state are the citizens of the state performing several duties towards the state.

- When citizens of another state are living

In the territory of the state, they are called aliens.

- population has to be ~~to~~ within a reasonable limit.

Territory:

- It is the second essential element of the state.
- State is a territorial unit.
- Definite territory is its essential component.
- A state cannot exist in the air or at sea.
- Territory has to be a definite well-marked portion of territory.
- The whole territory of the state is under the sovereignty or supreme power of the state.
- All persons, organizations, associations, institutions and places located within its

territory are under the sovereign jurisdiction of the state.

• state exercises sovereignty over all parts of its territory.

• ships of the state are its floating parts and aero-planes are its flying parts.

• A state can leave out its territory.

Government:

• Government is the organization or machinery or machinery of the state which, makes, implements, enforces, and adjudicates the law of the state.

• The state exercise its sovereign power through its government.

• Each government has 3 organs

— Legislature

↳ performs law making functions.

— Executive

↳ performs law application functions.

↳ Judiciary

↳ performs adjudication functions.

• Government can be of any form:

— Monarchy

— Aristocracy

— Dictatorship

— Democracy.

• It can be either parliamentary or presidential or both.

☐ Sovereignty:

- Sovereignty is the most exclusive element of a state.
- State alone possesses sovereignty.
- Without sovereignty no state can exist even if it has the other 3 elements.
- Sovereignty is the basis on which state regulates all aspects of life of the people living in its territory.

→ It has two dimensions

i) Internal Sovereignty:

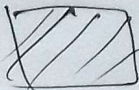
It means the power of the state to order and regulate the activities of all the people, groups and institutions which are at work within its territory.

ii) External sovereignty:

- It means complete independence of a state from external control.
- Each state has the sovereign power to formulate and act on the basis of its independent foreign policy.

iii) International recognition:

- The recognition of the sovereign status of a new state by other states is called international recognition.



Q) Briefly Explain the types of legitimacy. (4)
factors

Answer:

• Legitimacy is a political term which refers to the acceptance and recognition by the citizens of a country, the rights of their rulers to govern.

Factors:

i) Free and fair election:

A free and fair periodic election will make an Government legitimate.

ii) Good Governance:

• A Government that rules well and provide for the people lacking social amenities, services and infrastructure will earn peoples support and enjoy legitimacy.

iii) Reliable and Responsive leadership:

• leaders reliability and responsiveness towards peoples voice and opinion determines determines

If they would earn legitimacy.

4) Custom and tradition:

- Respect for the existing custom and tradition ^{of the society} is a must for a leader to be legitimate.

5) Foreign policy objectives:

- A government that has favourable and accommodating foreign policy objectives enjoys support and co-operation of other countries.

6) Level of political participation:

- A government must involve all section of people in governance.

⑦ Ideological beliefs:

- A legitimate Government must uphold the ideological beliefs and tenets of a country.

⑧ Freedom of the press:

- A legitimate government allows the government full freedom and their duty or to serve as the watch dogs.

⑨ Rule of law:

- A good government must abide by the rulings of the law to be legitimate.

Q According to Aristotle, give the idea about six types of traditional government.

Based on two principles Aristotle classified government into 6 types,

Principle 1:

- The number of person who exercises supreme power in the state.

Principle 2:

- The ends for which supreme power is exercised.

which may be either for the good of the ruled or the rulers.

Types:

1. Monarchy or royalty:

- Ruled by ~~one~~ a single ruler.
- Rules for the benefit of the people.

2. Tyranny

- A single ruler rules for his own benefits, satisfies his lust for power.
- Not legitimate.

3. Aristocracy

- A ~~form~~ form of government consisting of 10 to 20 most wisest, just and honest people in the state.

4. ~~The~~ Oligarchy

- perverse form of ~~government~~ Aristocracy.
- ruled for their own material and vainglory.
- difficult to be overthrown than tyranny.

5. Polity

- The best, and most difficult form of government to achieve.

- All relevant citizens of the state participate in the decision making through open discussion, compromise and conciliation.

6. Democracy:

- where people would go into chambers of government not to do social justice but rather seek for their own ends.

(Q) mention the types of modern government.

According to Leacock's classification

modern state can be divided into

1. Despotism state

- one man exercises supreme power without the reference to the will or wishes of the people.

2. Democratic state.

- supreme power rests ultimately with the people.

- Democracies are further divided into

a) limited monarchies

Ex: England, Belgium.

b) Republics

Ex: France, U.S.A

- These can be further divided into —

i) Unitary government

- All sovereign powers are in the hands of a single, central government.

ii) Federal state

- Two sets of government

- central
- federating.

- Unitary and federal state can be further divided into
 - i) parliamentary
 - ii) presidential or non-parliamentary

Q Illustrate the functions of a legislature.

Answer:

The functions of legislature are not identical in every country, it entirely depend upon the form of government.

There is no uniformity.

The main functions of the legislature may however be classified as follows:

1. Legislative function:

Legislative is the most prolific and direct source of law.

' Under a parliamentary system the executive has a direct hand in making of laws.

2. Deliberative

legislative functions consist of two kinds of work

i. law making

ii. deliberative

John Stuart Mill and some writers argue that they are separate as the function of law making is a skilled work which needs considerable experience, study and research.

3. Financial:

- It is the most important function.

- legislature handles the budget which is the nation's annual statement of accounts which shows -

① Estimation of financial expenditure.

② Calculation of anticipated revenues.

4. Administrative function:

• Its proper jurisdiction is that of superintendence and control.

5. Judicial function:

• The legislature in every country generally consists of two houses. Upper house in most countries performs certain judicial functions.

G. Constituent Functions:

- Parliament in Britain is both a legislative body and a constituent assembly.
- Proposal to amend the constitution must be made by a two thirds majority.

7. Electoral Functions:

- The elected members of both houses of parliament in India form a part of electoral college for the election of the president.

8. Miscellaneous Functions:

• The parliament of India has the power to remove the judges of ~~a~~ ^{the} supreme court and high court on the ground of proved misbehaviour.

• To Address for ~~the~~ such removal must be passed by a two third majority in each house.

[Q] Narrate the basic principles of democracy.

1. Liberty:

- The main basis of democracy is liberty and equality.
- Criticism of the people is not only tolerated in this system, but it is also encouraged.

2. Equality:

- Special emphasis is laid on equality in democracy.
- There is no disparity among the people on the basis of caste, creed, religion and position or status.
- It is essential to establish political and economic equality along with social equality.

3. Fraternity:

- Democracy can become successful only in a peaceful atmosphere, otherwise democracy has to face many difficulties.

- India was the president of the Non-Aligned movement and propagating this policy.

4. The people as ultimate source of Sovereignty:

- In democracy, people are the ultimate source of Sovereignty.

- Elections take place in democracies at certain intervals.

5. Fundamental rights to the people:

- Fundamental rights have been granted to the people in the constitutions because in the absence of these rights, the development of an individual is not possible.

6. Independence of judiciary:

- In a democracy, it is responsibility of the judiciary to protect the ~~the~~ fundamental rights of the people.
- Whenever judiciary is not free, the protection of ~~the~~ fundamental rights is not possible.

7. The people are considered as an end and state as the means in a democracy.

- This is one of the main characteristics of democracy that individual is a mean and the state is an end.
- State makers use of individual for its own interest.
- In a dictatorship no attention is paid to the freedom of the individual.

8. Welfare states

- Democracy in a welfare state.
- Special attention is paid to the welfare of the people as a whole and not to a particular class.